JUSTICE ALITO, concurring.

I agree that the trial court did not violate petitioner's Sixth Amendment right to the assistance of counsel by restricting consultation with his attorney during an overnight midtestimonial recess. I write to set out the framework under which courts should analyze limitations on communications between a criminal defendant and his attorney during a break in the defendant's testimony.

I

I begin with a word about the origin and nature of the constitutional right that petitioner invokes, that is, the right to confer with his attorney during an overnight break in his testimony. Petitioner claims that the Sixth Amendment right to the assistance of counsel includes this right. When the Sixth Amendment was adopted, however, criminal defendants could not testify in their own defense because they were not considered competent witnesses. See *Rock* v. *Arkansas*, 483 U. S. 44, 49–50 (1987). It follows that a defendant could not consult with an attorney about such testimony. Most States did not allow defendants to take the stand until well into the 19th century, see *Ferguson* v. *Georgia*, 365 U. S. 570, 576–577, and nn. 5–6 (1961), and this Court did not squarely recognize a defendant's constitutional right to testify in his own defense until its 1987 decision in *Rock*, 483 U. S., at 49. Even then, the Court did not hold that the Sixth Amendment alone conferred this right. The Court pointed to several possible sources of the right but appeared to rely primarily on the Due Process Clause. See *id.*, at 51. And the Court made clear that the constitutional right to testify was subject to limitations designed to protect the truth-seeking function of trial. *Id.*, at 55–56, and n. 11. Limitations on midtestimonial attorney-client communications must therefore be analyzed against this backdrop.

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II

In considering the permissible scope of a defendant's mid-testimonial consultation, it is helpful to begin with the baseline situation in which a defendant completes both direct and cross-examination without any break in the proceedings. In that situation, the governing rules allow the jury to hear the defendant's story in his own words from his own mouth, not a version of that story scripted or choreographed by counsel. A defendant may not, for instance, sign and present to the jury a carefully crafted affidavit of events written by counsel. Nor may the defense show the jury a video in which the defendant recites a prepared statement. And when the defendant is on the stand, defense counsel cannot pass him notes or speak to him via an earpiece.

Instead, the defendant must take the stand and speak directly to the jury in his own words. During direct examination, defense counsel generally may not lead the witness. Fed. Rule Evid. 611(c). That is, counsel may not ask questions in a form that suggests the answer that the defendant should give. And during cross-examination, counsel's participation is limited to objecting to any improper questions. Otherwise, the defendant is on his own.

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A break in the proceeding—either a short break during the trial day or an overnight recess—should not fundamentally alter the rule that the defendant must testify without coaching by counsel. That is why we have held that during a brief break a trial judge may prohibit all communications between the defendant and counsel. *Perry* v. *Leeke*, 488 U. S. 272, 281 (1989). In that situation, we observed, there was a "virtual certainty" that any communication between the defendant and his attorney would "relate to the ongoing testimony." *Id.*, at 283–284. When a defendant decides to take the stand, his testimony is a critical stage of the trial. If the jury comes away with a low opinion of his character or simply disbelieves his testimony, the chances of conviction

increase, and if the jury forms a favorable opinion of the defendant and believes his testimony, he has a greater chance of acquittal. Thus, during this critical phase, counsel will almost certainly prioritize bolstering the defendant's testimony over all other matters. And since a short break gives the defendant and counsel little time to converse, they will likely discuss only the most urgent topic at hand. With much at stake and limited time for consultation, it is almost certain that any discussion will concern the remainder of the client's make-or-break testimony, not other matters that can be discussed after the testimony ends.

A trial judge *could* deal with this situation by allowing the defendant and counsel to confer but instructing them not to talk about the defendant's testimony. But the judge would have little ability to determine whether the defendant and counsel obeyed this instruction. The judge could not sit in on their conversation or later ask them what they said. Instead, the judge would have to rely heavily on the attorney's good faith. Although we may presume that most defense attorneys would try to follow the judge's instructions, our decision in *Perry*—holding that consultation during a short midtestimonial break may be completely barred—eliminates the danger of noncompliance.

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III

When a defendant's testimony cannot be completed by the end of a trial day, the situation is somewhat different. Some things remain the same: Because of its centrality, the defendant's testimony is very likely still the top priority. Accordingly, counsel's incentive to improve that testimony will remain strong. But because they will have more time, the likelihood that the attorney and client will also seek to discuss matters unrelated to the defendant's testimony will be greater. And particularly if the defendant's testimony is anticipated to finish before the end of the next trial day, the

attorney and client might need to discuss other defense witnesses who will follow the defendant on the stand, as well as any rebuttal witnesses the prosecution might call.

In light of these different circumstances, the Court struck a different balance in *Geders* v. *United States*, 425 U. S. 80 (1976), and held that a trial judge may not prohibit all attorney-client consultation during an overnight break. But that decision did not alter the baseline rule that, if a defendant elects to take the stand, the jury is entitled to hear the defendant's own story in his own words, not a version crafted or edited by counsel. Thus, during an overnight break, a defendant may consult his attorney about matters other than the defendant's testimony, but any efforts to shape what the defendant will say when he resumes testifying are improper. And attempts to achieve that end indirectly are just as improper as attempts to do so directly.

For example, consider what defense counsel could and could not properly say during an overnight break concerning the tactical decision whether to seek a plea deal. Counsel could say, "Let's discuss what plea terms you would be willing to agree to," or, "We should seek a deal because there is a strong chance the jury will find you guilty." But counsel could not say: "We will really need to secure a deal unless you clean up mistakes A, B, and C that you made today on the stand." Nor could counsel say: "We will really need to secure some sort of deal unless, when you return to the stand tomorrow, you stop scowling, looking down, and making nervous gestures with your fingers." Such efforts would constitute the sort of improper "coaching" that *Geders* does not allow. They would not be "incidental." *Ante*, at 475, 478, and n. 5, 479.

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At bottom, a defendant and his counsel may not engage in midtestimonial discussions that affect the truth-seeking function of trial by improving or shaping the defendant's ongoing testimony. I join the majority opinion with the understanding that it draws this line.